

		settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The court usually sets these hearings nine months after settlement approval if the check cashing deadline is 180 days. The parties must report to the court the total amount that was actually paid to the aggrieved employees. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff is ordered to give notice of the ruling to the LWDA and Defendant.
4	30-2025-01476450 Benitez vs. American Caregivers, Inc.	The tentative ruling is to continue the hearing on Plaintiff Rosa Marin Benitez’s (“Plaintiff”) Motion for Approval of Settlement Under Private Attorneys General Act (“PAGA”) to November 2, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court’s concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. Plaintiff has not explained how this settlement affects related case, <i>Rosa Marin Benitez v. American Caregivers, Inc., et al.</i>, OCSC Case No. 2025-01452435-CU-OE-CXC (Notice of Related Case [ROA 17].) The moving papers do not include a copy of the January 13, 2025 LWDA letter. (Hawkins Dec. ¶ 3.) The court needs a copy of the letter to verify that the settlement terms are consistent with the notice provided to the LWDA. Plaintiff’s counsel states that the parties reached a settlement after the July 17, 2025 mediation, but the settlement agreement states that a second mediation was held on October 28, 2025, and the settlement agreement was resolved after the second mediation. (Hawkins Dec. ¶¶ 5-6; Settlement § II(3).) Plaintiff must provide further clarification as to this inconsistency.

	The settlement agreement does not state whether the settlement is reversionary or non-reversionary. An invoice from the Administrator is required to support the \$5,400.00 Administrator fee request. There is an escalator clause in the settlement agreement, but this is a motion to have the settlement fully approved, and so a specific gross settlement amount must be approved on the granting of this motion. At this point in time the parties should know or be able to determine the number of aggrieved employees and qualifying pay periods based on whichever PAGA Period the parties are using. Plaintiff has not submitted her attorneys' bills or a detailed hourly breakdown of her attorneys' hours to support the court's review of plaintiff's attorneys' fees request. Plaintiff must also provide the experience level for each attorney to support the reasonableness of the hourly rates for each timekeeper. Plaintiff is required to provide sufficient information to support the court's lodestar cross-check of the fee request. The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The court disallows the attorney costs amount claimed for postage, copies, scans, and faxes because the court considers these cost items to be properly part of attorney overhead. \$21.98 in postage costs should be deducted from the attorney costs request. An enhancement award of \$5,000 is sufficient and proper for the settlement of this size, and in light of plaintiff's contribution to the case. The court will not issue an injunction against the aggrieved employees. Res judicata and collateral estoppel arguments should provide defendant with sufficient protection against facing these same claims again. The phrase on Page 1 of the cover letter: "Upon entry of the order approving the Settlement, any PAGA Settlement Member covered by the Settlement will be barred from proceeding with any claim
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		released by the Settlement.” must be amended to state instead: “Upon entry of the order approving the Settlement, any PAGA Settlement Member covered by the Settlement may be barred as a matter of law from proceeding with any claim released by the Settlement.” The cover letter must explain that no claims for unpaid or underpaid wages have settled, and that this settlement is without prejudice to the pursuit of any such claims. Counsel should propose a realistic Final Report Hearing date and include it in the [Proposed] Order and Judgment, taking into account the time deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The court usually sets these hearings nine months after settlement approval if the check cashing deadline is 180 days. The parties must report to the court the total amount that was actually paid to the aggrieved employees. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff is ordered to give notice of the ruling to the LWDA and Defendant.
5	30-2025-01495141 Doan vs. Secure Guard Security Services, Inc.	The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff Quan M. Doan’s motion for approval of his individual-only PAGA settlement and request for dismissal with prejudice of his individual-only claims. Having considered all of the papers filed in this matter, plaintiff’s motion for approval is GRANTED, as follows: \$13,375.00 to plaintiff (including \$875.00 for individual PAGA penalties); \$12,500.00 for attorneys’ fees and costs; and \$1,625.00 for PAGA penalties to the LWDA. The parties and counsel are ordered to administer the settlement, including disbursement of the PAGA penalties, in accordance with the settlement agreement (ROA 72 Ex. 1). The court retains jurisdiction over this matter pursuant to Civil Procedure Code section 664.6 to enforce the settlement until performance in full of the terms of the settlement.